



WHERE HERITAGE LIVES ON

Customer Complaints Handling Procedure
September 1, 2017

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1. Introduction

Welcome to the National Museums of Kenya. We're a State Corporate established by an Act of Parliament- the National Museums and Heritage Act, 2006 no. 6 of 2006. NMK has day-to-day responsibility of protecting, preserving, and presenting Kenya's rich natural and cultural.

We want you to be delighted with our services wherever you come into contact with our museums. At NMK, we aim to deliver consistently high standards of customer service; from interesting exhibitions to friendly, efficient staff. We understand that without satisfied customers, our business can't grow.

There may be times however when our high standards are not met. If you are not happy with our services in any way, we welcome your comments and feedback. We want to resolve any problems you might have experienced as promptly and effectively as possible and your feedback is invaluable in helping us improve our services for the future.

The National Museums of Kenya Customer Complaints Handling Procedure sets out the processes we employ for dealing with complaints and comments. It establishes our commitments in relation to how we deal with complaints and the service you can expect from us. It includes:

- How to make a complaint and who to contact;
- How we will make it as easy as possible for you to get in touch with us;
- How we will respond to your complaint and when you can expect a response;
- How we will deal with your complaint fairly;
- The types of compensation you can expect; and
- How we review and monitor the complaints we receive, our response to them and the effectiveness of this policy.

Although NMK aims to resolve all complaints to your satisfaction, quickly and effectively, without the need for the involvement of third parties, the policy also gives further information on independent bodies you can contact if you are unhappy with the response we have provided.

Our Customer Complaints Handling Procedure is formally reviewed each year in consultation with the Commission on Administrative Justice. If you have any suggestions about how you think we could improve it, or any other aspects of the service, please contact me:

Dr. Mzalendo N, Kibunjia PhD, EBS

Director General

National Museums of Kenya Headquarters,

P.O. Box 40658 - 00100

Museum Hill, Nairobi

Kenya

dgnmk@museums.or.ke

1.1 Our Customer Complaints Handling Procedure

NMK is committed to continually improving the services we provide to our customers. We want our customers to choose National Museums of Kenya again and again because we consistently deliver the service we say we will in every respect.

We aim to always put our customers first and we understand that it is often the little things that matter most in delivering customer service excellence.

In spite of our efforts, we realize that from time to time, things do go wrong. When this happens, we will investigate matters fully and give customers an explanation for the failure, regardless of who was responsible, ourselves, our contractors, or our suppliers.

1.2 What is a Complaint?

A complaint is defined as: "Any expression of dissatisfaction by a customer or potential customer about service delivery by the company or its agents, and/or about company or industry policy."

Every time you voice dissatisfaction about any aspect of our service, our staff will take your comments seriously. We believe that by responding positively and proactively to your complaints and comments we will not only retain our existing customers, but attract new ones. We appreciate that customer feedback is vital in helping us deliver continuous improvement across our business.

1.3 Our Promise

The Customer Complaints Handling Procedure is designed to make sure your complaint is dealt with efficiently, fairly and effectively. We will ensure our procedure is:

- Easy - to find and well publicized;
- Simple - to understand and use;
- Efficient – setting out when you can expect a response from us;
- Fair – ensuring each complaint is investigated fully and fairly;
- Respectful – respecting your desire for confidentiality;
- Effective – addressing all the points you raise and providing an effective response and appropriate redress;
- Monitored – regularly monitored and audited to ensure it is effective and to allow improvements to be made;
- Reported – providing information to management so services can be improved; and
- Consistent – with the standards set out in our Service Delivery Charter.

2. Talking to us

2.1 Our staff

In the first instance, if you are unhappy about any aspect of our service, please approach a member of our staff. The member of staff will try, where possible, to resolve your complaint immediately involving his or her supervisor or appropriate manager if necessary.

However if your complaint cannot be resolved on the spot, we will pass it on to our Complaints Desk to enable the complaint to be made formally.

2.2 Our Public Relations Team

Our Public Relations team is easily contactable and has been specially trained to deal with your comments and complaints.

There are several ways to contact them:

Telephone: +254-20-8164134/35/36
+254 20 3745303
+254 20 3742741

Opening Hours 08:30-17:00 Monday to Friday excluding Public Holidays.

Email: complaints@museums.or.ke
Post: Director General
National Museums of Kenya
P.O. Box 40658-00100
Nairobi, Kenya

2.3 Our website – www.museums.or.ke

The contact details for the Public Relations team can be found on our website and you can email them directly.

You can download our Customer Complaints Handling Procedure and the Service Delivery Charter online.

2.4 Comments and Compliments forms

You can also use one of our Comments and Compliments forms to make a complaint or comment on our service. They are available from our PR team, our website www.museums.or.ke and from our staffed stations. You can hand these forms to any of our staff in our museums and they will be dealt with in accordance with this procedure.

3. Our Complaint Handling Process

Our complaint handling process is simple and easy to use.

3.1 If you make a complaint directly to a member of staff:

- The member of staff will try to resolve your complaint on the spot involving their supervisor if necessary;
- Where this is not possible, the manager, may investigate to try and resolve the problem quickly, in which case they will contact you directly;
- If your complaint is still not resolved it will be passed to the Public Relations team and

dealt with as described in section 3.2 below.

3.2 If you make a complaint to the Public Relations Team using a Comments and Compliments form or by contacting them directly:

- Our Public Relations staff will enter your complaint onto our Complaints Register. This enables them to view all the information on your case and pass it to the appropriate members of staff for investigation quickly;
- We assess the complaint for its complexity. We will investigate the issues you raise and respond as quickly as possible;
- If you have provided a daytime phone number we may attempt to resolve your complaint by telephone. If you agree that the issue is resolved, then at the end of this call, we will not contact you again on the matter by phone or post;
- If you are unhappy with our first response, and if relevant any recompense we have offered you, your complaint will be reviewed by our Public Relations Manager. We will respond to you again either supporting our original response or explaining a new decision. Our second response will include the name and position of the manager who has reviewed your case.
- If you are unhappy with our second response, you can refer your complaint to the Commission for Administrative Justice. This organization is an independent body, set up to protect the interests of the public, and handle public complaints. They can review your case and make representation to us on your behalf. Contact details and more information on CAJ can be found in the Contact Information section at the end of this procedure.

3.3 Customers with specific needs

We appreciate that some of our customers who have specific access requirements or whose first language is not English may have difficulties communicating with us. We will handle these cases sensitively and give our responses in an appropriate format. We will make provision for customers who are visually impaired or hard of hearing. Where possible, we will make provision for customers whose first language is not English.

3.4 Complaints about a service provider

If you wish to make a complaint about a service provider within a museum premise, our Public Relations team can provide their contact details.

If you complain to us about a service provider we will:

- Forward your complaint to the relevant department of the operator within five working days;
- Send you a letter within five working days acknowledging receipt of the complaint and explaining it has been forwarded. We will give the full address and contact details of where the letter has been forwarded to; and
- Keep a record of the correspondence. The service provider will respond to your complaint in line with its own complaint handling procedure.

4. Response times

When you complain directly to a member of our staff, either on the phone or in person, we will try to resolve the complaint immediately.

However if this is not possible and/or your complaint has been passed to the Public Relations team we aim to meet the target response times below:

4.1 Our target response times

We aim to respond fully to all complaints, including complex ones, within 10 working days whether you contact us by letter, phone, email, fax, in person or using a Comments and Compliments form.

If you have not received a full response within 10 working days, we will ensure you are sent an update advising you of the progress made on your case, and will continue to update you every 10 days until a full response is provided.

4.2 Busy periods

We will make reasonable endeavors to ensure we meet our response times even when there is an unexpected increase in the volume of complaints received. However if there are exceptional circumstances we may, with agreement from the Commission of Administrative Justice, increase these response times. We will notify customers via our website www.museums.or.ke if this is the case and make every effort to respond to you as soon as we can.

4.3 Referral to Commission on Administrative Justice

If your complaint has been referred to the Commission on Administrative Justice, we will provide a full response to 90% of referrals within 10 working days and 100% of referrals within 20 working days.

Please note that these response times are from receipt of correspondence from this independent body regarding your case by our Public Relations department.

The referrals will be reviewed by our Public Relations Manager or nominated deputy. Please note that once the Commission on Administrative Justice are investigating your case our Public Relations Manager may decide to respond to this organization rather than to you directly.

5. A full and fair investigation

We promise we will investigate all complaints made to us, fully and fairly. We will:

- Ensure we will follow our Customer Complaints Handling Procedure consistently;
- Make every effort to address all the issues raised in your complaint in our responses to you;
- Provide full and relevant explanations for the actions or policies being complained about; and
- Explain how you can contact independent bodies if you are unhappy with our second response.

Our Public Relations department will handle any comment or complaint that requires an internal investigation. If we carry out an in-house investigation, we will ensure it is undertaken thoroughly and fairly.

We will:

- Thoroughly check the relevant facts;
- Ensure that we are not biased towards anyone involved;
- Obtain responses from all appropriate staff and suppliers such as:-
 - Members of the NMK staff regarding incidents;
 - Managers regarding policy issues; and
 - Suppliers who provide goods and services to us.

We will provide a full response to your complaint. Our response to you will include:

- The outcome of any internal investigation we have made;
- The actions we have taken to remedy the source of your dissatisfaction and improve our service to you; and
- Any compensation we are offering you if appropriate.

6. Compensation

We will offer you compensation if we believe it is appropriate. We will determine the amount of compensation we will offer you in accordance with the our internal guidelines. Compensation will usually be offered in the form of:

- NMK Vouchers for payment or part payment of an admission charge/venue hire;
- Complimentary ticket(s) for a future museum visits; or
- A cheque.

7. Unreasonable, aggressive or abusive customers

We understand that if you perceive we have not met our standards of customer service, you might feel angry or upset. However whilst we respect the rights of our customers to express their views, we will not tolerate aggressive, threatening or abusive actions of any kind towards members of our staff.

We reserve the right to terminate any correspondence or communication that we believe to be 'frivolous, vexatious or abusive'. We will consult fully with the Commission on Administrative Justice before we terminate any correspondence and inform the customer in writing of the reasons behind our decision.

8. Confidentiality

We will protect your confidentiality. Your personal details or details about your complaint will not be divulged to any third parties unless we have your consent in writing or it is necessary for us to fulfill our own obligations either to:

- Members of Parliament, the Ministry of State for National Heritage and Culture or Commission on Administrative Justice in order to facilitate their investigations; and
- The Police on request, in order to support their investigation of crimes.

9. Monitoring and reporting

9.1 Monitoring

We monitor our Customer Complaints Handling Procedure to ensure it is effective in a number of ways:

- We monitor telephone calls to our Public Relations Department to ensure our team are handling your complaints in a friendly, appropriate and professional manner;
- Our Public Relations Manager samples and reviews the written responses made by our team to ensure your complaints are being dealt with promptly and effectively;
- Every four weeks, randomly selected customers are invited to complete a customer satisfaction form on our response to their complaint. These satisfaction rates are monitored to ensure you are happy with our response;
- Our Public Relations team enter details of complaints received onto our Customer Complaints Register. This database enables us to record and monitor the number and type of complaints received along with average response times.

9.2 Management reports

The information obtained from our monitoring processes is used to assess whether we are handling your complaints efficiently and that customers are satisfied with our responses. The analysis of your feedback helps us identify areas where we can improve the service we provide.

To ensure our managers drive improvement, we:

- Send appropriate managers and directors at all levels comment and complaint details and summaries for their areas of responsibility at least every four weeks. Managers are expected to use the information to identify areas that require improvement and to remedy them;
- Provide a summary of comments and complaints to the Board of Directors every four weeks so issues can be addressed quickly and managers at all levels are aware of the issues;
- Constantly monitor performance targets for handling customer comments and complaints and seek improved processes;
- Submit reports to the Commission on Administrative Justice every quarter on our performance in handling complaints. Response times and customer satisfaction ratings are included; and
- Provide information to the CAJ in the format and at the intervals required on the number

of comments and complaints we receive and our performance in dealing with them.

10. Claims for losses, property damage or personal injury

If you wish to make a claim against National Museums of Kenya for losses, property damage or personal injury this should be made in writing by email or letter to our Public Relations team (see Contact Information in section 12 of this leaflet). Our Public Relations team will either deal with your claim or pass it to our Legal Office.

We have internal processes for the handling of claims by third parties which fall within NMK's jurisdiction. These processes are periodically reviewed by our Insurers and Claims Handlers.

11. Reviewing our procedure

Our Customer Complaints Handling Procedure is formally reviewed every year in consultation with the Commission on Administrative Justice

12. Contact Information

We want to make it as easy as possible for you to contact us if you need to comment or make a complaint about our services.

12.1 Publicizing our contact details

We publicize our contact details in the following ways:

Via our website – www.museums.or.ke

The contact details for the Public Relations Team can be found on our website and you can email them directly at publicrelations@museums.or.ke

It also gives full details of how to make a complaint. *On posters at museums and sites*
Full contact details for our Public Relations team, and how to make a comment about our services, are displayed on posters at our museums on information notices.

In our publications

Our Service Delivery Charter also gives our contacts.

In local phone directories

We ensure our telephone numbers are listed in local phone directories.

12.2 Our Public Relations Team's Contact Details

Telephone: +254-20-8164134/35/36
+254 20 3745303
+254 20 3742741

Opening Hours 08:00-17:00 Monday to Friday excluding Weekends and Public Holidays.

Email: complaints@museums.or.ke
Post: Director General
National Museums of Kenya
P.O. Box 40658-00100
Nairobi, Kenya

12.3 Availability of our Customer Complaints Handling Procedure

A copy of our Customer Complaints Handling Procedure can be found on our website
www.museums.or.ke

12.4 Contacting Independent Consumer Watchdogs

The Commission on Administrative Justice is an independent consumer watchdog, established by the Commission on Administrative Justice Act No. 23 of 2011 pursuant to Article 59(4) of the Constitution.

CAJ is a Commission within the meaning of chapter 15 of the Constitution and has the status and powers of a commission under that chapter.

In execution of the above mandate the commission performs the following;

- Investigates any conduct in state affairs, or any act or omission in public administration in any sphere of government, that is alleged or suspected to be prejudicial or improper or to result in any impropriety or prejudice [A.59(2)(h) of the Constitution].
- Investigates complaints of abuse of power, unfair treatment, manifest injustice or unlawful, oppressive, unfair or unresponsive official conduct [A.59 (2)(i)]
- Inquires into allegations of maladministration, delay, administrative injustice, discourtesy, incompetence, misbehavior, inefficiency or ineptitude within the public service[Sec.8 d]
- Recommends compensation or other appropriate remedies against persons or bodies to which the Act applies[Sec.8 g]
- Promotes public awareness of policies and administrative procedures on matters relating to administrative justice.[Sec.8 (j)]

National Museums of Kenya will always try to address your comments and concerns in a fair and reasonable way in accordance with our Customer Complaints Handling Procedure and our Service Delivery Charter.

However, if you are not happy with our response you may contact the Commission on Administrative Justice:

Commission On Administrative Justice,
West End Towers, 2nd Floor,
Waiyaki Way Westlands,
P.O Box 20414-00200 Nairobi.
Tel: +254 20 2270000
Toll free Number 0800221349,
SMS Short-Code Number 15700
Website: www.ombudsman.go.ke

They will consider your case and, where they believe it is appropriate, will follow things up with us on your behalf.